

25STCV29777 25STCV29777

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Case Number: 25STCV29777 Hearing Date: August 18, 2026 Dept: 316

BACKGROUND

Plaintiffs Rajauui Murphy, Iyana Taylor,

Rajauui Murphy Jr., Honey Murphy, and Alanna Taylor allege that their rental unit was unfit for human habitation and detrimental to their health and safety.

On March 2, 2026, Plaintiffs filed their first amended complaint against Defendant Deborah A. Daniels. The complaint alleges three causes of action stemming from the facts alleged above.

On April 13, 2026, Plaintiffs filed a Proof of Service of Summons ("POS").

On

May 29, 2026, Defendant filed a Motion to Quash Service of Summons.

On August 5, 2026, Plaintiffs filed an opposition.

No reply was filed.

TENTATIVE RULING

Defendant's Motion to Quash Service of Summons is DENIED.

LEGAL STANDARD

Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. (See *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444.) Thus, a court lacks personal jurisdiction over a party if they have not been properly served. (See *Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.) The filing of a proof of service creates a rebuttable presumption that the service was proper, but only if the proof of service satisfies relevant statutory requirements. (See *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441-1442.)

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion. . . (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).)

DISCUSSION

The Court finds that Plaintiffs satisfied all requirements for substituted service and that the means of substituted service were proper. Thus, Defendant was properly served, and the Court has personal jurisdiction over her.

Code of Civil Procedure, section 415.20, subdivision (b) states:

If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served . . . summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address . . . in the presence of a competent member of the household . . . at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were

left.

Here, the POS states that on April 1, 2026, Plaintiffs' process server handed the summons, FAC and other documents to "Jane Doe" at Defendant's home address. (See POS, p. 1.) A physical description of "Jane Doe" is provided in the proof of service. Furthermore, the POS is accompanied by a Declaration of Due Diligence demonstrating that the process server attempted, and failed, to personally serve Defendant on four separate occasions prior to effecting substitute service. (See POS, p. 4.) These documents establish that Plaintiffs were reasonably diligent in attempting to personally serve Defendant, substituted service was warranted, and that Plaintiffs properly served a competent member of Defendant's household. (See Code Civ. Proc., § 415.20, subd. (b).)

In her motion, Defendant claims that Plaintiffs' substituted service was defective. But she does not provide any specific reason to support her position. (See Motion, pp. 3:7-5:3.) The only possible reason provided by Defendant is that Plaintiffs did not file proof of diligence. (See *id.* at p. 4:25-26 ["Here, no such proof of diligence exists. The purported service is therefore fatally defective."].) However, this is incorrect; Plaintiffs filed a Declaration of Due Diligence. (See POS, p. 4.)

Defendant also contends that the burden is on Plaintiffs to prove that their purported service was valid. (See Motion, p. 5:7-18.) However, Plaintiffs have met their burden by providing the POS signed by a registered process server. (See *Dill v. Berquist Construction Co.*, 24 Cal.App.4th 1426, 1441-1442 (1994).) Therefore, the burden is now of Defendant to rebut the presumption that service was valid. (See *ibid.*) Defendant's failure to do so means that the presumption remains intact.

The Court finds that Plaintiffs properly served Defendant via substituted service. Accordingly, the Court has personal jurisdiction over Defendant.

CONCLUSION

For the reason stated

above, Defendant's Motion to Quash Service of Summons is DENIED. Defendant is ordered to file and serve a response to the FAC within twenty days of the Court's ruling.